

24NWCV04566 24NWCV04566

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Case Number: 24NWCV04566 Hearing Date: June 30, 2026 Dept: SED

DANIEL PRIETO, ET AL. V. FORD MOTOR COMPANY, ET AL.

CASE NO.: 24NWCV04566

HEARING: 06/30/2026 @ 9:30 a.m.

#11

TENTATIVE ORDER

Plaintiffs Daniel Prieto and Rosana Carranza aka Rosana Yanira Carranza
Navarro's motion for attorneys' fees is GRANTED

Defendant Ford Motor Company is ordered to pay the awarded amount
within 90 days of this Order.

Moving parties to give notice.

Plaintiffs Daniel Prieto and Rosana Carranza aka Rosana Yanira Carranza
Navarro (collectively, Plaintiffs) move for an order awarding attorneys' fees,
costs, and expenses in the amount of \$30,208.10.

Background

This is a lemon law case. On
November 20, 2024, Plaintiffs filed the operative Complaint against Defendants
Ford Motor Company, Cerritos Ford, Inc. dba Norm Reeves Ford Lincoln/Reeves
Ford Superstore and Does 1 through 10, inclusive, asserting three causes of

action: (1) Violation of the Song-Beverly Act–Breach of Express Warranty, (2) Violation of the Song-Beverly Act–Breach of Implied Warranty, and (3) Negligent Repair.

Legal Standard

If a buyer-plaintiff prevails in an action under Civil Code section 1794, “the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorneys’ fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794 (d).)¿

Analysis

Plaintiffs move for an order awarding attorneys’ fees, costs, and expenses in the amount of \$30,208.10.

Here, Plaintiffs are the prevailing party in this action and Ford’s opposition does not contend otherwise.

Thus, Plaintiffs are entitled to reasonable attorneys’ fees. The only issue pending before this court is the amount of the award.

Reasonableness of Hourly Rate

Plaintiffs’ counsel requests the following hourly rates:

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Armando

Lopez: \$450

-

Colby

Meagle: \$400 (2025); \$450 (2026)

-

Chris

Swanson: \$575

-

Debra

Reed: \$495

-

Jacob

Cutler: \$550

-

Lauren

Ungs: \$575

-

Matias

Leite: \$350

-

Summer

Smith: \$625

-

Marianne

Collazo (Law Clerk): \$295

In opposition, Ford argues that Plaintiffs' requested rates are excessive, unsupported by evidence, and well above the rates charged for similar work in this county. (Opp., p.

6.) Ford relies on recent federal decisions and market rate data to argue that reasonable rates should not exceed \$350 per hour for partners and \$275 per hour for associates. (Id. at p. 7.)

In reply, Plaintiffs argue that Ford has not presented competent evidence demonstrating that the requested hourly rates are unreasonable. (Reply pp. 3-5.) Plaintiffs argue the requested rates are supported by declarations, prior fee awards, and prevailing market rates in comparable Song-Beverly litigation, while Defendant's reliance on outdated federal cases and the Real Rate Report is misplaced. (Ibid.) Plaintiffs further contend the existence of a contingent fee agreement does not limit the reasonable hourly rate recoverable under the Song-Beverly Act. (Id.

at p. 5.)

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) Normally, a "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)

The Court finds that Plaintiffs have shown that their requested hourly rates reflect the prevailing market rates for attorneys of comparable skill and experience in the relevant community. Plaintiffs' attorneys take cases on a contingency and, unlike defense counsel who work for large companies, there is no guarantee that Plaintiffs' attorneys will get paid when they agree to take a case. It is not unreasonable that the hourly rates for plaintiffs' lemon law attorneys are higher than the hourly rates for defense counsel in certain circumstances.

Accordingly, the Court concludes that Plaintiffs' requested rates are reasonable.

Reasonableness of Hours Billed

The trial court has an obligation to award only those attorneys' fees that are reasonable. (See PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).)

Although a verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred," (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682), counsel still has the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.)

Plaintiffs seek an award for attorneys' fees representing a total amount of 46.6 hours, plus a 1.2 lodestar multiplier. (Kirnos Decl., ¶ 2, Ex. A.)

Ford argues that Plaintiffs seek compensation for excessive, inefficient, and unnecessary time that should be excluded altogether. (Opp., p. 9.) In particular, Ford contends that all billing by Marianne Collazo (Collazo) should be stricken because she is not licensed to practice law in California and that awarding attorney's fees for her work would

improperly compensate the unauthorized practice of law. (*Ibid.*; Ross Decl., ¶ 4, Ex. D, citing *Z.A. v. San Bruno Park School Dist.* (9th Cir. 1999) 165 F.3d 1273.)

California courts, however, have recognized that attorney fee awards may include compensation for work performed by supervised non-attorney legal professionals, including paralegals, law clerks, certified law students, and legal assistants, where such work is properly delegated and performed under attorney supervision. (*Sundance v. Municipal Court* (1987) 192 Cal.App.3d 268 [holding exclusion of paralegal time was improper]; *Guinn v. Dotson* (1994) 23 Cal.App.4th 262 [reversing trial court's decision to exclude law clerk time from the fee award]; *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379 [affirming fee award that included work performed by a certified law student].)

Here, Plaintiffs assert that although Collazo is licensed in Puerto Rico and not California, she performed work in the capacity of a law clerk under the supervision of California-licensed attorneys, did not appear in court or sign pleadings, and billed her time at a reduced rate of \$295 per hour reflecting that role. (Reply, p. 9.)

The Court is persuaded. The billing records reflect that Collazo's work consisted primarily of drafting motions, a task that may appropriately be delegated to a supervised law clerk. Moreover, the same billing records show that California attorney Armando Lopez separately billed time on the same days to revise and finalize those motions before filing, supporting Plaintiffs' representation that Collazo's work was performed under attorney supervision. (Kirnos Decl., ¶ 2, Ex. A.) Accordingly, the Court declines to exclude Collazo's time on the sole basis that she is not licensed to practice law in California.

The Court has reviewed and considered Plaintiffs' counsel's attached billing records, together with Defendant's objections to the reasonableness of certain billing entries (Ross Decl., ¶ 4, Ex. D), and determines that the following time allocation is unreasonable:

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Counsel
billed 3.0 hours for anticipated work related to the instant motion for attorney's fees, consisting of 2.0 hours to review Defendant's opposition and

1.0 hour to prepare a reply. The Court finds that 2.0 hours is a reasonable amount of time to review Defendant's opposition and prepare a reply in support of a routine attorney's fee motion. Accordingly, the Court reduces the anticipated time from 3.0 hours to 2.0 hours, resulting in a reduction of 1.0 hour.

Accordingly, the Court will strike a total of 1 hour from the motion.

Lodestar Multiplier

The Court

disagrees with Plaintiffs that the contingency nature of this representation warrants either a higher hourly rate or the application of a fee multiplier. The contingency risk is already reflected in the reasonable hourly rate of \$450.00. Moreover, the risk in this case was not particularly high. Actions brought under the Song-Beverly Consumer Warranty Act frequently settle, as this one did, and the Act's mandatory fee-shifting provision further reduces the financial risk borne by Plaintiffs' counsel.

Accordingly, the Court awards Plaintiffs attorney's fees in the amount of \$20,650.50.

Memorandum of Costs

A verified

memorandum of costs is prima facie evidence concerning the reasonableness of costs and expenses claimed by the Plaintiff. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (Ladas v. California State Auto.

Assn. (1993) 19 Cal. App. 4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs". (Id.)

Plaintiffs filed a costs memorandum seeking \$4,491.75, in litigation costs related to filing and motion fees, service of process, and electronic filing or service. (Kirnos Decl., ¶ 2, Ex. B.)

Ford argues that Plaintiffs' request for litigation costs should be denied in its entirety because Plaintiffs failed to submit invoices, receipts, or other documentation establishing that the requested costs were actually and reasonably incurred. (Opp., pp. 13-14.)

The Court is not persuaded. Ford's reliance on *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522 (*Jay*) is misplaced. *Jay* addresses the impropriety of raising new arguments or introducing evidence on reply that could have been presented in the moving papers, thereby depriving the opposing party of an opportunity to respond. Here, however, Plaintiffs did not assert a new basis for recovery or seek a new category of costs in reply. Rather, Plaintiffs submitted supporting documentation in direct response to Ford's objection that the requested costs were unsupported. Because Ford's opposition placed the reasonableness of Plaintiffs' costs at issue, the burden shifted to Plaintiffs to substantiate the requested costs. Plaintiffs' reply evidence was therefore proper rebuttal evidence, not an improper attempt to raise new matters on reply. Moreover, Ford does not identify any specific cost that is unreasonable or unnecessary.

Having reviewed Plaintiffs' supporting documentation, the Court finds the requested filing fees, service of process fees, and electronic filing and service fees were reasonably incurred in the prosecution of this action and awards the requested litigation costs.

Conclusion

Plaintiffs Daniel Prieto and Rosana Carranza aka Rosana Yanira Carranza Navarro's motion for attorneys' fees is GRANTED in the total reduced amount of \$25,142.25, representing attorneys' fees in the amount of \$20,650.50 and litigation costs in the requested amount of \$4,491.75.